

26IWUD01055 26IWUD01055

County: los-angeles

Division: Civil Law and Motion

Department: 8

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The demurrer is overruled. The Defendants argue the complaint is defective because "the Three-day Notice was not properly served to the Defendant[s]." The complaint, however, alleges the Plaintiff served a three-day notice on the Defendants in a manner specified in the parties' written commercial lease. (See Cplt., ¶ 10.a(5).) Whether service was effected properly cannot be resolved via this demurrer, as that argument relies on facts beyond the face of the complaint of which the court cannot take judicial notice. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Defendants are ordered to file an Answer only within five days' notice of the court's ruling.